

Submitted via electronic mail at [REDACTED]

March 15, 2025

AI Action Plan
Attn: Faisal D'Souza
NITRD National Coordination Office
2415 Eisenhower Avenue
Alexandria, Virginia 22314

RE: Request for Information on the Development of an Artificial Intelligence ("AI") Action Plan

Dear Mr. D'Souza:

Alliance for Automotive Innovation is pleased to submit comments to the Office of Science and Technology Policy ("OSTP") in response to its request for information on the development of an Artificial Intelligence ("AI") Action Plan. Alliance for Automotive Innovation appreciates the Administration's engagement with various stakeholders regarding policy actions that sustain and enhance the country's global AI dominance and promote innovation.

Alliance for Automotive Innovation represents the full automotive industry, including the manufacturers producing most vehicles sold in the U.S., equipment suppliers, battery producers, semiconductor makers, technology companies, and autonomous vehicle developers. Our mission is to work with policymakers to realize a cleaner, safer, and smarter transportation future and to ensure a healthy and competitive auto industry that supports U.S. economic and national security. Representing approximately 5 percent of the country's GDP, responsible for supporting 10 million jobs, and driving \$1.2 trillion in annual economic activity, the automotive industry is the nation's largest manufacturing sector.

The automotive industry leverages the power of AI to integrate driver support features, advanced safety technologies, and automated driving systems into consumer vehicles. These and other technological advances have the potential to improve roadway safety, increase traffic efficiency, reduce serious injuries and deaths, and help protect all road users. For these reasons, Alliance for Automotive Innovation shares the Administration's commitment to solidifying the United States' position as a leader in AI and to promoting economic competitiveness and national security.

Alliance for Automotive Innovation makes the following recommendations to OSTP as it identifies the highest priority policy actions that should be in the new AI Action Plan:

- **Regulatory Coordination:** The AI Action Plan should prioritize a "whole-of-government" approach to any potential AI regulation. The Plan should encourage interagency coordination to minimize duplication of or conflict with existing regulatory requirements whenever possible. For

heavily regulated industries such as the automotive industry, the Plan should account for existing regulatory oversight of AI-enabled systems.

- **Risk Management:** The AI Action Plan should encourage adoption of voluntary risk management frameworks and industry best practices for assessing the risks associated with the use of AI. It is critical that the public and private sectors work together to determine the appropriate balance between enabling the benefits of AI technologies for promising use cases and managing or reducing the risks posed by such technologies. Examples of such an approach include the International Organization for Standardization/International Electromechanical Commission Standard 42001 or the National Institute of Standards and Technology Artificial Intelligence Risk Management Framework.
- **Standards Development:** The AI Action Plan should establish a forum for public and private sector experts to contribute to the development of voluntary AI-related standards and guidelines that will increase adoption of AI technologies. Such collaboration would ensure that AI standards do not result in barriers to innovation by U.S. companies that develop and deploy AI. The National Institute of Standards and Technology (“NIST”), as a non-regulatory agency, has a long history of industry engagement and crafting voluntary guidance documents that have become global benchmarks. NIST continuing its work on AI would help guarantee that the U.S. leads the development of AI standards.
- **Autonomous Vehicles:** The AI Action Plan should call for the development of a federal autonomous vehicle (“AV”) deployment framework. AI is a critical input for AVs. Other countries – including China, France, and Germany – are implementing regulatory frameworks to support the development and deployment of AVs, and this raises questions about U.S. economic competitiveness in the automotive sector. If other nations lead in this space, they can guide the development of international standards, control supply chains, and define international markets. The U.S. Department of Transportation and the National Highway Traffic Safety Administration should lead on this issue.
- **Export Controls:** The AI Action Plan should streamline the patchwork of AI-related export controls. The potential imposition of additional controls on AI technologies and inputs should exclude civil automotive applications, except to the extent necessary to address a specific national security concern. Any controls should reflect and accommodate the civil, commercial nature of automotive use cases and avoid impeding the research, design, and development activities of the U.S. automotive industry. Such constraints could place the industry at a globally competitive disadvantage, particularly as it relates to supply and value chains.
- **Intellectual Property Rights:** The AI Action Plan should assess how current intellectual property policy incentivizes investment in AI technologies. In addition to concerns regarding patentability and patent quality, an area for consideration is AI-related standard essential patents (“SEPs”). The ability to license SEPs on fair, reasonable, and non-discriminatory (“F/RAND”) terms is critical to balancing the market power that SEP holders have with the needs of automotive companies to license and implement common standardized technologies such as Internet connectivity, increased computing capacity, or broadband cellular networks. It is important that any AI-related SEPs abide by F/RAND licensing terms as well.

Alliance for Automotive Innovation appreciates being able to share the perspective of the U.S. automotive industry on the important issue of removing barriers to U.S. leadership in AI. We look forward to continued engagement with OSTP as it develops the AI Action Plan.

Sincerely,

Tara Hairston
Senior Director, Technology Policy